

24CHCV02702 24CHCV02702

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Case Number: 24CHCV02702 Hearing Date: July 10, 2026 Dept: F47

Dept. F47

Date: 7/10/26

TRIAL DATE: 11/2/26

Case #24CHCV02702

MOTION TO

COMPEL FURTHER RESPONSES

(Form

Interrogatories, Set 1)

Motion filed on 6/15/26.

MOVING PARTY: Plaintiff Serene Fakhouri

RESPONDING PARTY: Defendant Magic Mountain, LLC

RELIEF REQUESTED: An order

compelling Defendant Magic Mountain, LLC to, within 10 days, serve a further verified response to Form Interrogatories, Set 1, No. 4.1. Additionally, Plaintiff requests an order imposing sanctions against Defendant and its counsel, Sanaz Cherazie and Amaro Baldwin, LLP, jointly and severally, in the amount of \$3,600.00.

RULING: The motion is denied. Defendant's request for sanctions is granted.

SUMMARY OF FACTS & PROCEDURAL HISTORY

This action arises out of injuries allegedly sustained by Plaintiffs Serene Fakhouri (Serene); Cassandra Fakhouri (Cassandra's claims were dismissed with prejudiced on 11/19/25) and Reyan Fakhouri (Reyan) (collectively, Plaintiffs) as a result of riding the Riddler's Revenge roller coaster at Defendants Magic Mountain, LLC and Six Flags Entertainment Corporation's theme park. Reyan is the mother of Serene and Cassandra. (Second Amended Complaint (SAC) ¶4).

On 7/24/23, Plaintiffs visited Defendants' amusement park and rode the Riddler's Revenge roller coaster. (SAC ¶22). Plaintiffs allege that while on the ride, their heads and bodies were jerked around like rag dolls to the point where they all sustained traumatic brain injuries. (See SAC ¶¶25-27). Additionally, Plaintiffs allege that when they got off the ride, they exhibited post-concussion symptoms. Id. Serene also exhibited left facial droop and slurred speech. Id.

Plaintiffs have sued Defendant Magic Mountain LLC (Defendant) and others for: (1) General Negligence, (2) Premises Liability, (3) Negligent Infliction of Emotional Distress, (4) Strict Products Liability – Manufacturing Defect, (5) Strict Products Liability – Design Defect, and (6) Strict Products Liability – Failure to Warn.

On 8/25/25, Serene/Plaintiff served Defendant with Form Interrogatories, Set 1, including Form Interrogatory No.4.1. (Gonzalez Decl. Decl., Ex.1). After several extensions, on 11/3/25, Defendant served responses. (Id., Ex.2, 3). On 11/21/25, Defendant electronically served its verification for the responses. (Id., Ex.4). On 12/30/25, the parties then began to meet and confer regarding responses which Plaintiff found deficient. (Id., Ex.5-7). On 1/30/26, Defendant electronically served supplemental responses and on 3/9/26, Defendant served a verification. (Id., Ex.8). The parties then met and conferred regarding deficiencies in the supplemental responses. (Id., Ex.9). On 2/27/26, Defendant electronically served its second supplemental responses which Plaintiff also found to be deficient. (Id., Ex.10). On 4/13/26, Plaintiff sent a

meet and confer letter. (Id.,

Ex.11). On 4/16/26, Defendant requested additional time to respond which Plaintiff rejected.

On 4/21/26, Defendant served its third supplemental responses and served a verification on 4/27/26. (Id., Ex.12).

On 6/15/26, Plaintiff filed and served the instant motion seeking an order compelling Defendant to, within 10 days, serve a further verified response to Form Interrogatories, Set 1, No. 4.1. Additionally, Plaintiff requests an order imposing sanctions against Defendant and its counsel, Sanaz Cherazie and Amaro Baldwin, LLP, jointly and severally, in the amount of \$3,600.00. Defendant has opposed the motion and Plaintiff has filed a reply to the opposition.

ANALYSIS

On receipt of a response to interrogatories, if the propounding party deems an answer to an interrogatory is evasive or incomplete; an exercise of the option to produce documents is unwarranted or the required specification of those documents is inadequate or an objection is without merit or too general, the propounding party may move to compel a further response. CCP 2030.300(a).

Here, Plaintiff takes issue with Defendant's response to Form Interrogatory 4.1 which asks:

"At the time of the INCIDENT, was there in effect any policy of insurance through which you were or might be insured in any manner (for example, primary, pro-rata, or excess liability coverage or medical expense coverage) for the damages, claims, or actions that have arisen out of the INCIDENT? If so, for each policy state:

(a) the kind of coverage;

(b) the name and ADDRESS of the insurance company;

(c) the name, ADDRESS, and telephone number of each named insured;

(d) the policy number;

(e) the limits of coverage for each type of coverage contained in the policy;

(f) whether any reservation of rights or controversy or coverage dispute exists between you and the insurance company; and

(g) the name, ADDRESS, and telephone number of the custodian of the policy.”

Defendant initially objected to the interrogatory. Then in a supplemental response, Defendant indicated that it would supplement the response by producing an insurance declaration page/certificate of insurance that lists coverage. Confusingly, in a second supplemental response, Defendant reasserted its original objection and referenced insurance declarations documents for responsive information. Finally, in Defendant's third supplemental response, Defendant responded with the following information, without asserting any objection:

(a) Commercial
General Liability (Excess);

(b) Hartford
Fire Insurance Company, Hartford Plaza, Hartford, CT 06155;

(c) Six
Flags Entertainment Corporation; 8701 Red Oak Blvd, Charlotte, NC 28217;

(d) 46
WN R96419

(e) \$500,000
(Hartford) Excess Coverage, \$2,000,000 Self-Insured Retention

(f) No;

(g) Six
Flags Entertainment Corporation, who may be contacted through Responding Party's counsel of record.

It appears that Plaintiff does not believe that the information set forth in Defendant's third supplemental response represents all of the available insurance for the incident. In fact, the reply goes as far as implying that the response is a lie. (See Reply, p.2:5-14). However, Plaintiff has no evidence to support such belief/claim other than speculation that Defendant is withholding information regarding additional insurance policies for the tactical reason of deceitfully inducing Plaintiff into a lower settlement amount. (See Reply, p.3:5-14). Further, the reply concedes that the third supplemental response could be accurate, but Plaintiff claims the response is unclear. Plaintiff argues:

"Defendant's 4.1 response only discloses a single \$500,000 insurance policy. The other \$2,000,000 is self-insured retention ("SIR") and not an insurance policy. In the 4.1 response, the Defendant indicates that the Hartford Policy is an "excess" policy. This means, at a minimum, there is an underlying policy. While that underlying policy may be referring to the \$2,000,000 SIR, it is unclear." (emphasis added).

(See Reply, p.2:15-20).

Contrary to the implication in the reply, there is no requirement that Defendant state in the response or in a declaration in support of the opposition that the information in the verified discovery response is accurate or that no other insurance policies exist. Moreover, while the opposition may not have used the exact wording Plaintiff desires, it does state that "Plaintiff's Motion is premised on the unsupported assumption that Defendant possesses additional applicable insurance policies beyond those identified in Defendant's subject response to Form Interrogatory No. 4.1." (See Opposition, p.4:22-24).

The Court cannot order Defendant to provide a further response to Form Interrogatory 4.1, to which Defendant has provided a code-compliant verified response, based on Plaintiff's speculation that Defendant did not provide information as to all available insurance policies. Plaintiff's assertion in the reply that Defendant's third amended response includes objections is also without merit. (See Reply, p.2:26-p.3:4). In the reply, Plaintiff argues that the "introduction" section to the third amended responses amounts to objections. *Id.* However, Plaintiff does not address the introduction section of the third amended responses in the motion. Moreover, the introduction merely states that Defendant has not

completed its investigation of the facts and has not fully completed discovery. Id.

Defendant is entitled to sanctions for having to oppose

the instant motion as it was filed and served after Defendant served a

code-compliant response to Form Interrogatory No. 4.1 in its third supplemental response. See CCP 2030.300(d). As such, sanctions are imposed against

Plaintiff and Plaintiff's counsel in the amount of \$990.00 (2 hours x

\$495/hour). (See Cherazaie Decl.

¶6).

CONCLUSION

The motion is denied.

Defendant's request for sanctions is granted. Plaintiff and/or Plaintiff's counsel are

ordered to pay Defendant sanctions in the amount of \$990.00 within 30

days.